

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 30-006
Amendments to Title 1 of the Chickasaw Nation Code
(Reapportionment)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature is required by the Chickasaw Constitution to prescribe an apportionment plan for representation on the Tribal Legislature, and

WHEREAS, the Tribal Legislature has prescribed an apportionment plan codified in Title 1, Chapter 3 of the Chickasaw Nation Code, and

WHEREAS, the Tribal Legislature desires to amend that apportionment plan.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 1, Chapter 3 of the Chickasaw Nation Code, all other sections and parts of sections to remain the same:

Sections 1-301.1 through 1-301.7 are hereby deleted in their entirety. The following language is hereby adopted:

“SECTION 1-301.1 **SHORT TITLE.**

This Title 1, Chapter 3 of the Chickasaw Nation Code shall be called the “Chickasaw Nation Apportionment Plan” (“Plan”).

SECTION 1-301.2 **FINDINGS.**

A. Pursuant to Article VI, Section 3 of the Chickasaw Constitution, “[t]he Tribal Legislature shall consist of thirteen (13) members to be elected from the following districts according to an apportionment plan prescribed by the Tribal Legislature: Panola, Pickens, Tishomingo, Pontotoc.”

B. Pursuant to Article VI, Section 5 of the Chickasaw Constitution, such plan must be based on registered voters of the Chickasaw Nation “until such time a more reliable means can be established pursuant to legislative action.”

C. The Chickasaw Constitution was ratified by the Chickasaw voters in 1983, a time when it was not anticipated that tribal membership would grow to the extent that it has and that most of the Chickasaw voters would be living outside the Nation's boundaries.

D. The Chickasaw Tribal Legislature finds that the number of registered voters affiliated with each of the four (4) voting districts of the Chickasaw Nation is no longer a reliable means for equitable distribution of the legislative function of tribal government among the four (4) districts.

E. The Chickasaw Tribal Legislature finds that it is in the best interest of the Chickasaw Nation that the current apportionment be maintained.

SECTION 1-301.3

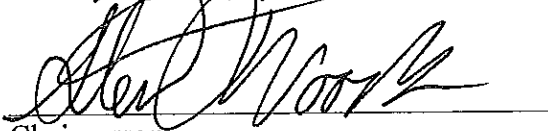
APPORTIONMENT.

The districts of the Chickasaw Nation shall contain the following designated number of Legislative seats for each district in accordance with the Chickasaw Constitution and this Plan:

1. Panola District - one (1) seat in the Tribal Legislature.
2. Pickens District - four (4) seats in the Tribal Legislature.
3. Pontotoc District - five (5) seats in the Tribal Legislature.
4. Tishomingo District - three (3) seats in the Tribal Legislature.

This apportionment shall remain in effect until changed in accordance with the provisions of the Constitution and Code of the Chickasaw Nation."

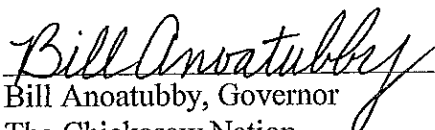
Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on January 17, 2013, by a vote of 13 ayes, 0 nays, 0 abstentions.



Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: JAN 17 2013



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Explanation: This resolution amends the apportionment plan codified in Title 1 of the Chickasaw Nation Code so that the current apportionment is maintained. The current apportionment plan is anticipated to require Tishomingo District to lose a seat in 2013 and Pontotoc District to gain one seat; therefore, the seats would number Panola - 1; Tishomingo - 2; Pickens - 4; and Pontotoc - 6.

Presented By: Legislative Committee